

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

10. S-CV-0055620 HOUSTON, CHRISTOPHER v. FCA US

Plaintiff's Motion for an Order Enforcing Defendant's Compliance with C.C.P. § 998
Offer to Compromise

Plaintiff's motion is denied without prejudice because there is no proof of service in the record indicating plaintiff served the court's ex parte order on defendant as required by the court's May 1, 2026, order granting ex parte application.

11. S-CV-0055676 CONFIDENTIAL v. COLFAX HIGH SCHOOL

The demurrer is dropped from calendar as no moving papers were filed with the court.

12. S-CV-0055712 MORIN, MARLYS v. CITY OF ROSEVILLE

Defendant County of Placer's Demurrer to Plaintiff's First Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Demurrer

Defendant demurs to plaintiff Marlys Morin's entire first amended complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action for general negligence/premises liability/dangerous condition of public property. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant argues plaintiff does not allege facts sufficient to state the first cause of action for negligence/premises liability/dangerous condition of public property.